

LX-004

How to Write a Legal Research Memo

Audience: Students | Stage: Once You're In | Read Time: 7 min

The Locus Playbook — by LexRoot
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01

What a memo is and isn't

A legal research memo is an internal document that answers a specific legal question. It's not an essay, not an opinion piece, and definitely not a law school assignment. It's a practical tool that helps lawyers make decisions.

The purpose of a memo is to present the law as it stands, analyse how it applies to the client's situation, and arrive at a conclusion. You're not arguing for a side — you're providing an objective analysis. If the law is unfavourable to the client, say so clearly. Hiding bad news helps no one.

A good memo saves a senior lawyer hours of research. A bad memo creates more work than it saves. The difference usually comes down to structure, clarity, and knowing when to stop researching.

02

Structure: IRAC explained

IRAC (Issue, Rule, Application, Conclusion) isn't just an academic framework — it's the standard structure used by practising lawyers across India. Master it.

Issue: State the specific legal question in one or two sentences. "Whether a non-compete clause in an employment agreement is enforceable under Section 27 of the Indian Contract Act, 1872."

Rule: Set out the relevant legal provisions, leading judgments, and any regulatory guidelines. Cite the statute first, then landmark Supreme Court decisions, then relevant High Court rulings. Stick to authoritative sources.

Application: This is where your analysis lives. Apply the rules to your client's specific facts.

Conclusion: A clear, direct answer to the question posed. Don't hedge excessively — give your best assessment and note any caveats separately.

03

Research methodology

Efficient research is a skill that separates good interns from great ones. Start broad, then narrow down.

Step 1: Read the bare statute first. Understand what the law actually says before diving into interpretations. Step 2: Find the landmark Supreme Court decisions on the provision. SCC Online, Manupatra, and Indian Kanoon are your primary databases. Step 3: Check for recent High Court decisions that might indicate evolving judicial thinking. Step 4: Look for relevant SEBI/RBI/MCA circulars, notifications, or rules if the area involves regulatory compliance.

Set a time limit for your research. If you've been researching for more than 3 hours without finding a clear answer, the question might need to be reframed. Discuss with your supervisor rather than going down rabbit holes.

Always keep track of what you've searched and where. Note the databases used, search terms, and key cases found. This prevents duplicate effort and helps if someone else needs to continue your research.

04

Writing style and tone

Legal writing in India has a reputation for being unnecessarily complex. Don't perpetuate this. Write clearly, write concisely, and use plain English wherever possible.

Use short sentences. Break complex arguments into digestible parts. Avoid Latin phrases unless they're genuinely necessary ("prima facie" is fine; "inter alia" is usually just showing off when "among other things" works perfectly).

Structure your paragraphs logically: one idea per paragraph. Use headings and sub-headings liberally. Bold key conclusions so a busy partner can scan the memo in 2 minutes and get the gist.

Cite properly. Follow a consistent citation format — most firms use either SCC or AIR style citations. When in doubt, ask your supervisor which format they prefer. Always include the paragraph or page number, not just the case name.

05

Common mistakes

The most common mistake is writing too much. A 15-page memo that should have been 5 pages isn't thorough — it's unfocused. Partners don't have time to wade through padding. If your analysis is complete in 4 pages, stop at 4 pages.

Other frequent errors: copying passages from judgments without analysis (the partner can read the judgment themselves — they need your analysis of how it applies), not distinguishing between binding and persuasive authority (a Supreme Court decision carries more weight than a single-judge High Court order), and burying the conclusion at the end of a long analysis.

Put your conclusion at the top. Many firms prefer an “Executive Summary” format where the answer appears first, followed by the detailed analysis. This lets the partner get the answer immediately and read the reasoning only if they want to.

Finally, always proofread. Typos and citation errors undermine your credibility. Read your memo once for content, once for grammar, and once for formatting before submitting.

— End of Guide —